

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlo Vescovi	Team: Squad #14	CCRB Case #: 202204558	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 07/04/2022 10:35 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/4/2024	Precinct: 90		
Date/Time CV Reported Tue, 07/05/2022 2:30 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/11/2022 3:19 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Jauneil Wright	02087	961459	PSA 3
2. PO Kristal Ramos	23995	967279	PSA 3
3. An officer			
4. PO Faisal Elwan	10625	968390	PSA 3
5. PO Shakira Herrera	09753	968489	090 PCT
6. PO Pascual Melo	06249	966218	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Tyler Howe	14840	961822	090 PCT
2. PO Luis Negrón	26287	968665	090 PCT
3. PO Jesse Trap	10734	960033	PSA 3
4. Jeffrey Keitel		972038	PSA 3
5. PO Matthew Schulte	14847	961260	090 PCT
6. PO Daquan Peoples	19347	962677	090 PCT
7. PO Vincent Balverdy	14451	960200	090 PCT
8. PO Mina Adly	03567	961594	090 PCT
9. PO Jonathan Batista	15262	968957	090 PCT
10. PO Luis Sierra	12825	966340	090 PCT
11. PO Juan Carpio	27523	971860	090 PCT
12. PO Piotr Trusewicz	27088	967369	PSA 3
13. PO Eric Chau	00197	961684	090 PCT
14. PO Jonathan Baez	02411	965942	090 PCT
15. PO Karl Thomas	23368	962838	090 PCT
16. PO Michael Lugo	20412	967978	090 PCT
17. PO Frank Vetere	25777	969417	090 PCT
18. PO Gurjot Bhogal	02847	970416	090 PCT
19. SGT Ramil Casimir	05184	950170	090 PCT
20. PO Keoto Peterson	28884	967253	PSA 3

Witness Officer(s)	Shield No	Tax No	Cmd Name
21. PO Sergiomonty Ang	17175	967753	PSA 3
22. PO Robert Bonilla	14552	965954	090 PCT
23. PO Luigi Scalici	12555	970844	090 PCT
24. PO Ranffy Mella	23197	969220	PSA 3
25. SGT Pasquale Pellegrino	03494	904768	090 PCT
26. PO Tejinder Singh	14167	959992	090 PCT
27. PO Michael Reilly	20366	959123	090 PCT
28. PO Ramses Cruz	06083	918899	090 PCT
29. PO Michael Thorman	15408	950775	090 PCT
30. PO Dzmitry Drazhyn	05055	969055	PSA 3
31. PO Deonarine Ragbar	10465	962036	090 PCT
32. PO Jonathan Galindosanchez	23267	964005	090 PCT
33. PO Christopher Aquino	19234	968940	090 PCT
34. PO Elizabeth Castro	06524	960341	090 PCT
35. PO Michal Jalbrzykowski	21736	959710	PSA 3
36. PO Michael Crichlow	20395	960083	090 PCT
37. PO Md Parvez	18999	968056	090 PCT
38. PO Jahidhur Ovi	24021	963191	090 PCT
39. PO Mariusz Kowal	18436	961868	090 PCT
40. PO Nicholas Hernandez	08647	968487	PSA 3
41. PO Stephan Howell	27451	969123	090 PCT
42. PO Alina Sarkisyan	24589	964280	090 PCT
43. PO Michael Gratereaux	03621	972667	090 PCT
44. PO Vincent Daquaro	11470	966014	090 PCT
45. PO Francine Delvalle	14094	955874	090 PCT
46. PO Andrew Paulino	19209	970058	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A. PO Jauneil Wright	Discourtesy: Police Officer Jauneil Wright spoke discourteously to § 87(2)(b)	
B. PO Jauneil Wright	Abuse: Police Officer Jauneil Wright stopped § 87(2)(b)	
C. PO Faisal Elwan	Force: Police Officer Faisal Elwan used physical force against § 87(2)(b)	
D. PO Jauneil Wright	Force: Police Officer Jauneil Wright used physical force against § 87(2)(b)	
E. PO Kristal Ramos	Force: Police Officer Kristal Ramos used physical force against § 87(2)(b)	
F. PO Faisal Elwan	Discourtesy: Police Officer Faisal Elwan acted discourteously toward § 87(2)(b)	
G. PO Shakira Herrera	Discourtesy: Police Officer Shakira Herrera spoke discourteously to an individual.	
H. PO Pascual Melo	Discourtesy: Police Officer Pascual Melo spoke discourteously to an individual.	
I. An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b)	

Case Summary

On July 5th, 2022, § 87(2)(b) filed the following complaint with IAB via telephone on behalf of himself and his friends, § 87(2)(b) and § 87(2)(b). The CCRB received this case on July 11th, 2022.

On July 4th, 2022, at 10:35 p.m., § 87(2)(b), § 87(2)(b), and § 87(2)(b) were among a group of approximately 10 individuals barbecuing and playing music in front of § 87(2)(b) in Brooklyn. PO Jauneil Wright and Kristal Ramos, both of PSA 3, responded to a phone call made directly to the PSA 3 stationhouse complaining of loud music from § 87(2)(b)'s car. Upon responding to the location, PO Ramos approached § 87(2)(b) and asked him to turn down the music coming from his vehicle. While he initially agreed, § 87(2)(b) then objected to turning down the music, at which point PO Wright stopped § 87(2)(b) by stating, "Fuck this, give me your ID" (**Allegation A: Discourtesy, § 87(2)(g)**, **Allegation B: Abuse of Authority, § 87(2)(g)** § 87(2)(b)). § 87(2)(b) refused to provide his ID to PO Wright, at which point PO Ramos requested additional officers on scene.

Police Officers Nicholas Hernandez, Michael Jalbrzykowski, Dzmitry Drazhyn, Ranffy Mella, Sergiomonty Ang, Piotr Trusewicz, Jeffrey Kietel, Keoto Peterson, Pascual Melo, Faisal Elwan, Jesse Trap, Andrew Paulino, of PSA 3, Police Officers Jonathan Batista, Michael Thorman, Daquan Peoples, Deonarine Ragbar, Jonathan Galindosanchez, Christopher Aquino, Elizabeth Castro, Michael Crichlow, Md Parvez, Jahidhur Ovi, Mariusz Kowal, Matthew Schulte, Stephan Howell, Alina Sarkisyan, Michael Gratereaux, Vincent Daquaro, Ramses Cruz, Mina Adly, Michael Reilly, Vincent Balverdy, Luis Sierra, Juan Carpio, Shakira Herrera, Eric Chau, Jonathan Baez, Karl Thomas, Michael Lugo, Tejinder Singh, Frank Vetere, Francine Delvalle, Luis Negron, Robert Bonilla, Luigi Scalici, Tyler Howe, Gurjot Bhogal, and Sergeants Ramil Casimir, and Pasquale Pellegrino, of the 90th Precinct, responded to the scene as back up.

PO Wright told § 87(2)(b) that he was not free to leave, and § 87(2)(b) began to walk towards the curb near a parked vehicle. PO Wright grabbed § 87(2)(b) and with the assistance of other officers, began to place him in handcuffs. PO Elwan punched § 87(2)(b)'s arm and torso multiple times with a closed fist to effect § 87(2)(b)'s arrest (**Allegation C: Force**, § 87(2)(g) § 87(2)(b)). PO Wright then turned his attention to § 87(2)(b) who he placed under arrest. PO Wright used a forcible takedown on § 87(2)(b) before placing him in handcuffs (**Allegation D: Force**, § 87(2)(g) § 87(2)(b)). PO Ramos placed § 87(2)(b) under arrest, using force to effect his arrest (**Allegation E: Force**, § 87(2)(g) § 87(2)(b)). PO Elwan kicked § 87(2)(b) hat across the sidewalk and stated, "I kick whatever I want," (**Allegation F: Discourtesy**, § 87(2)(g) § 87(2)(b)). A vehicle driven by an unidentified individual was standing in front of § 87(2)(b) § 87(2)(b), its pathway apparently blocked by police vehicles. PO Herrera told the driver of the vehicle, "My man, can you fucking leave? Fucking get in your car...the fuck is wrong with you? Fuck out of here. Shut the fuck up, go" (**Allegation G: Discourtesy**, § 87(2)(g) § 87(2)(b)). PO Melo told the individual, "Move your fucking car," (**Allegation H: Discourtesy**, § 87(2)(g) § 87(2)(b)). As § 87(2)(b) was removed to a police vehicle, an officer told him, "Get in the fucking vehicle," (**Allegation I: Discourtesy**, § 87(2)(g) § 87(2)(b)).

§ 87(2)(b), § 87(2)(b), and § 87(2)(b) were arrested as a result of this incident (BR 01). § 87(2)(b) was charged § 87(2)(a) 160.50

§ 87(2)(b) was charged § 87(2)(a) 160.50

§ 87(2)(b) was charged § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

BWC for this case was received from POs Hernandez, Jalbrzykowski, Drazhyn, Mella, Ang, Trusewicz, Kietel, Peterson, Melo, Elwan, Trap, Paulino, Batista, Thorman, Peoples, Ragbar, Galindosanchez, Aquino, Castro, Crichlow, Parvez, Ovi, Kowal, Schulte, Howell, Sarkisyan, Gratereaux, Daquaro, Cruz, Adly, Reilly, Balverdy, Sierra, Carpio, Herrera, Chau, Baez, Thomas,

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Jauneil Wright spoke discourteously to § 87(2)(b)

Allegation (A) Discourtesy: Police Officer Jauneil Wright spoke discourteously to § 87(2)(b)

you lower the music, it's way too loud." § 87(2)(b) replies, "Way too loud for what? I'll lower it." PO Ramos responds, "Way too loud for a residential development where people live and want to sleep." § 87(2)(b) states, "I grew up in this development." PO Wright interjects and states, "Alright, let's get your ID," (1:38). § 87(2)(b) responds by requesting a sergeant on scene. At 3:14, PO Wright tells § 87(2)(b) "You're not free to go," and blocks § 87(2)(b)'s path. The footage does not capture PO Wright stating, "Fuck this, give me your ID," or using the word "fuck."

New York City Administrative Code 21-218 (a) states that no person shall make, continue, or cause or permit to be made or continued any reasonable noise (BR 06).

NYPD Patrol Guide Procedure 208-01 (BR 07) states that members of service are permitted to make an arrest without a warrant for a petty offense in his presence when it is believed to have been committed within the arresting officer's geographical area of employment.

NYPD Patrol Guide Procedure 209-01 (BR 32) states that members of service are permitted to serve summonses/notices of violation for any violation listed in the NYC Administrative Code.

§ 87(2)(b), § 87(2)(g)

It is undisputed that § 87(2)(b) played music from his Infinity in front of § 87(2)(b) at which point PO Ramos and PO Wright approached him and requested he turned it down. § 87(2)(b), § 87(2)(g)

Allegation (C) Force: Police Officer Faisal Elwan used physical force against § 87(2)(b)

§ 87(2)(b) testified that as PO Wright and PO Ramos attempted to place handcuffs on § 87(2)(b), § 87(2)(b) resisted by flailing and tensing his body. In response, an officer punched § 87(2)(b) in the ribs on his right side between five or six times with a closed fist. § 87(2)(b) stated, "You're really punching me in the ribs right now? Now I'm going to resist, now I'm going to fight." § 87(2)(b) then more vigorously resisted by pulling his arms away from the officers. After approximately five minutes, officers successfully handcuffed § 87(2)(b) behind his back.

PO Elwan testified (BR 10) that § 87(2)(b) actively resisted arrest by pushing officers off him and kicking his legs. § 87(2)(b) also repeatedly grabbed the handcuffs as officers attempted to handcuff him. At one point, § 87(2)(b) was grabbing the handcuff in such a way that PO Elwan's hand was trapped. PO Elwan responded by punching § 87(2)(b) in the arm with a closed fist several times. § 87(2)(b) released his grip and PO Elwan stopped punching § 87(2)(b). PO Elwan did specifically not recall punching § 87(2)(b) in the ribs. PO Elwan testified to the presence of a crowd as the incident unfolded.

At 2:15 on the player timestamp of PO Elwan's BWC footage (BR 11), as officers attempt to place § 87(2)(b) in handcuffs he is captured resisting by pulling his arms away from officers. At least three other officers surround § 87(2)(b) in the struggle. At 2:18, PO Elwan is captured punching § 87(2)(b) somewhere on the right side of his body, though the exact location of the punches is unclear due to the camera's movement. At 2:41 on the player timestamp, § 87(2)(b)'s hand is captured clutching a bracelet of a pair of handcuffs. § 87(2)(b) continues to resist until 2:43 on the player timestamp, during which time an officer is captured successfully cuffing one of § 87(2)(b)'s wrists. At 2:49, PO Elwan is captured stating, "Let go of the cuff," and is captured punching § 87(2)(b) approximately three more times.

A Threat, Resistance, and Injury Report for this incident states that PO Elwan used wrestling/grappling to overcome resistance or aggression (BR 12). PO Elwan testified he did not know why the punches were not more specifically documented in the TRI.

NYPD Patrol Guide Procedure 221-01 (BR 13) states that force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life. In all circumstances, the application or use of force must be reasonable under the circumstances. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject. In determining whether the use of force is reasonable, MOS should consider the following: The nature/severity of the crime; actions taken by the subject; duration of the action; immediacy of the perceived threat; the number of subjects in comparison to the number of MOS; the size, age, and condition of the subject in comparison to the MOS; the presence of hostile crowd or agitators.

NYPD Patrol Guide Procedure 221-02 (BR 14) states that member of service should apply no more than the reasonable force necessary to gain control. Members of service must assess the situation continually and adjust the use of force as necessary.

It is undisputed that § 87(2)(b) actively resisted as officers attempted to handcuff him. It is undisputed that PO Elwan punched § 87(2)(b) with a closed fist several times during this struggle.

§ 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Allegation (D) Force: Police Officer Jauneil Wright used physical force against § 87(2)(b).

§ 87(2)(b)
§ 87(2)(b) testified that as officers struggled to place § 87(2)(b) in handcuffs, § 87(2)(b) walked over to see what was going on. § 87(2)(b) was approximately five feet away from § 87(2)(b) and the officers when PO Wright, "rushed" § 87(2)(b) and grabbed § 87(2)(b)'s arms. § 87(2)(b) backpedaled towards the building line of § 87(2)(b) and PO Wright continued to grapple with him. PO Wright tried to kick § 87(2)(b)'s feet out from under him. PO Wright then took § 87(2)(b) to the ground with assistance from one additional officer. § 87(2)(b) landed on his right side with his hand underneath him and received scrapes to his hand from the takedown. § 87(2)(b) did not seek medical treatment.

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b) was charged § 87(2)(a) 160.50

A TRI prepared for this incident (BR 12) lists PO Wright as using “Forcible takedown, wrestling/grappling,” for “overcome resistance or aggression, defense of self.” § 87(2)(b) is listed as using, “active resistance, pushing/shoving, wrestling/grappling.”

At 1:40 on the player timestamp of PO Keitel’s BWC, (BR 15) PO Wright and at least two other officers are in the process of handcuffing § 87(2)(b). § 87(2)(b)’s chest is against a vehicle parked in the street. From 1:40-1:56, § 87(2)(b) wearing a black short sleeve t-shirt, black pants, and glasses, walks towards the officers undertaking § 87(2)(b)’s arrest, even as various officers instruct civilians to step back. At 1:58, PO Wright is captured turning partially around to face § 87(2)(b) and states, “Step back, step back.” PO Wright’s left arm is outstretched and making contact with § 87(2)(b)’s chest. § 87(2)(b)’s right hand is briefly on PO Wright’s arm, and at 2:01, PO Wright turns around to face § 87(2)(b) stating, “He’s under too.” PO Ramos and PO Wright then grab § 87(2)(b) by his right and left arms, respectively. § 87(2)(b) is not captured violently pushing PO Wright.

At 3:49 on the player timestamp of PO Wright’s BWC (BR 16), PO Wright is captured issuing the command to “Step back,” to § 87(2)(b) who is approximately two feet away from PO Wright. At 3:51, PO Wright turns around to face § 87(2)(b) stating, “He’s under too.” From 3:51-4:11, PO Wright is captured struggling with § 87(2)(b) as he attempts to place § 87(2)(b) under arrest. The footage is up-close and blurry and does not capture the exact specifics of the takedown. At 3:57 on the player timestamp, § 87(2)(b) is captured facing PO Wright with his arms outstretched. At 4:01, an officer can be heard telling § 87(2)(b) to get on the ground and place his hands behind his back. At 4:08, § 87(2)(b) is captured on the ground on his knees with his back facing PO Wright. At 4:11, § 87(2)(b) is captured in a seated position against the door frame of § 87(2)(b). PO Wright then handcuffs § 87(2)(b).

PO Wright testified that as he and other officers attempted to handcuff § 87(2)(b), § 87(2)(b) approached PO Wright, leading PO Wright to believe that § 87(2)(b) was going to interfere with § 87(2)(b)’s arrest. A crowd of at least ten people had formed and members of the crowd were shouting at PO Wright. PO Wright turned his body slightly outwards, instructing § 87(2)(b) to get back. § 87(2)(b) responded by pushing PO Wright’s arm, at which point PO Wright left § 87(2)(b) to other officers and turned his attention to § 87(2)(b). PO Wright began grappling with § 87(2)(b) and § 87(2)(b) actively resisted by pushing PO Wright’s arms and backing up towards § 87(2)(b).

NYPD Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life. In all circumstances, the application or use of force must be reasonable under the circumstances. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject. In determining whether the use of force is reasonable, MOS should consider the following: The nature/severity of the crime; actions taken by the subject; duration of the action; immediacy of the perceived threat; the number of subjects in comparison to the number of MOS; the size, age, and condition of the subject in comparison to the MOS; the presence of hostile crowd or agitators.

NYPD Patrol Guide Procedure 221-02 states that member of service should apply no more than the reasonable force necessary to gain control. Members of service must assess the situation continually and adjust the use of force as necessary.

It is undisputed that PO Wright used a forcible takedown to bring § 87(2)(b) to the ground. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

PO Keitel's BWC footage, which shows § 87(2)(b) within two feet of PO Wright as PO Wright and other officers attempt to handcuff § 87(2)(b).

§ 87(2)(b), § 87(2)(b), § 87(2)(g)

PO Keitel's BWC footage does clearly capture § 87(2)(b)'s attempt to interfere in § 87(2)(b)'s arrest, and PO Wright's clear command to step back, which § 87(2)(b) ignores. § 87(2)(b), § 87(2)(g)

Allegation (E) Force: Police Officer Kristal Ramos used physical force against § 87(2)(b) A TRI prepared for this incident (BR 12) listed PO Ramos as using force against § 87(2)(b). The TRI lists, "active resistance, pushing/shoving, wrestling/grappling," in the 'Force Against Reporting MOS' field and, "wrestling/grappling to overcome resistance or aggression, defense of self," in the 'Actions Taken by Reporting MOS field.' § 87(2)(a) 160.50

§ 87(2)(b) declined to provide a statement to the investigation (see IAs for contact attempts).

§ 87(2)(b) testified that he did not know if any force was used against § 87(2)(b) during the incident. § 87(2)(b) testified that officers used a forcible takedown against § 87(2)(b) but was not otherwise able to describe the specifics.

At 2:00 on the player timestamp of PO Keitel's BWC, § 87(2)(b) is captured wearing a white t-shirt, blue jeans, and a black and red baseball cap. PO Ramos and PO Wright arrest § 87(2)(b) wearing a black t-shirt with black framed glasses on. At 2:08, PO Ramos is captured pulling § 87(2)(b) and pushing him several times on his chest until his back is against the wall of § 87(2)(b). At 2:10, § 87(2)(b) is captured quickly moving toward § 87(2)(b) as PO Ramos effects his arrest and placing his hands onto the officers and § 87(2)(b). PO Ramos and one additional officer turn their attention towards § 87(2)(b) at 2:14. From 2:15-2:20, PO Ramos guides § 87(2)(b) such that his back is against the building wall. PO Ramos' left hand is outstretched, pushing § 87(2)(b) chest against the wall. At 2:30 on the player timestamp, § 87(2)(b) removes PO Ramos' hand twice, and twice she places her hand back on his chest. From 2:30-2:55, officers place § 87(2)(b) in handcuffs.

PO Ramos testified (BR 31) that as she was arresting § 87(2)(b), § 87(2)(b) rushed towards the officers. PO Ramos turned her focus towards § 87(2)(b) making the decision to arrest § 87(2)(b). PO Ramos told § 87(2)(b) to put his hands behind his back and § 87(2)(b) resisted by flailing his arms and tensing up. § 87(2)(b) smacked PO Ramos' hands off of his body as she arrested him.

NYPD Patrol Guide Procedure 221-01 (BR 13) states that force may be used when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life. In all circumstances, the application or use of force must be reasonable under the circumstances. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject. In determining whether the

use of force is reasonable, MOS should consider the following: The nature/severity of the crime; actions taken by the subject; duration of the action; immediacy of the perceived threat; the number of subjects in comparison to the number of MOS; the size, age, and condition of the subject in comparison to the MOS; the presence of hostile crowd or agitators.

NYPD Patrol Guide Procedure 221-02 (BR 14) states that member of service should apply no more than the reasonable force necessary to gain control. Members of service must assess the situation continually and adjust the use of force as necessary.

§ 87(2)(b), § 87(2)(g)

Allegation (F) Discourtesy: Police Officer Faisal Elwan acted discourteously toward § 87(2)(b).

At 1:46 on the player timestamp of PO Lugo's BWC (BR 17), PO Elwan is captured walking towards another officer. At 1:48, PO Elwan's foot touches a black baseball cap on the ground, identified by the investigation as belonging to § 87(2)(b) and at 1:49 PO Elwan forcefully kicks the same hat across the sidewalk. At 5:22 on the player timestamp of PO Elwan's BWC, he is speaking with an unidentified individual near the perimeter of the incident. The individual asks PO Elwan why he kicked the hat, and PO Elwan responds, "I kick whatever I want." At 3:15 on the player timestamp of PO Sierra's BWC (BR 18), § 87(2)(b) is already in handcuffs and being removed to a police vehicle. § 87(2)(b) asks an unidentified individual, "Hey, can you get my hat off the floor right here?" The video does not capture if the individual retrieves § 87(2)(b) hat.

§ 87(2)(b) declined to provide a statement to the investigation (see IAs for contact attempts).

PO Elwan testified that he kicked § 87(2)(b) hat because he almost tripped over it and did not want anyone to slip on the hat.

NYPD Patrol Guide Procedure 200-02 states that members of service are to maintain a higher standard of integrity than is generally expected of others, and to value human life, respect the dignity of each individual and render services with courtesy and civility.

§ 87(2)(b), § 87(2)(g)

Allegation (G) Discourtesy: Police Officer Shakira Herrera spoke discourteously to § 87(2)(b).

§ 87(2)(b)

Allegation (H) Discourtesy: Police Officer Pascual Melo spoke discourteously to § 87(2)(b).

At 6:05 on the player timestamp of PO Herrera's BWC (BR 19), she is captured speaking to an unidentified civilian whose car is blocked by police traffic and activity in front of § 87(2)(b). PO Herrera is captured stating, "My man can you fucking leave?" "Fucking get in your car. The fuck is wrong with you? Fuck you of here...shut the fuck up, go." At 3:08 on the player timestamp of PO Melo's BWC (BR 20), PO Melo is captured speaking towards the same individual in the vehicle. PO Melo state, "Move your fucking car," and bangs on the rear

window of the individual's vehicle.

In her testimony, (BR 26) PO Herrera did not dispute the profanity she used as captured on her own BWC video. PO Herrera testified she used these words in the heat of the moment, as a means of controlling the crowd, and because the driver of the vehicle used profanity earlier in the incident. PO Herrera was also attempting to convey the severity of the situation to the driver of the vehicle.

§ 87(2)(b) § 87(2)(b), § 87(2)(g)

NYPD Patrol Guide Procedure 200-02 states that members of service are to maintain a higher standard of integrity than is generally expected of others, and to value human life, respect the dignity of each individual and render services with courtesy and civility. Officers may use profanities "in the context of a dynamic situation over which [he or she is] attempting to gain control," but may not do so when it "[serves] no legitimate purpose but to belittle" a civilian (PD v. Pichardo, DAO DCT Case Number 2015-15012).

It is undisputed that PO Herrera used the word, "fuck," several times when speaking with a civilian despite the requirement that members of service render their services with courtesy and civility. PO Herrera testified she used discourtesy in the heat of the moment, to control the crowd, and because the driver of the vehicle had used profanity. § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation (I) Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified that after officers successfully handcuffed him, they escorted him to a squad car for transport. § 87(2)(b) asked, "What is the reason for this?" An officer that § 87(2)(b) described only as male stated, "Get in the fucking vehicle." § 87(2)(b) then got inside a marked squad car and was transported to the 90th Precinct stationhouse.

At 6:30 on the player timestamp of PO Howe's BWC footage (BR 22), PO Howe and two other officers walk § 87(2)(b) to a marked squad car a few car lengths away from the incident. From 6:40-7:10, officers frisk § 87(2)(b)'s pants pockets before opening the door to the RMP and instructing § 87(2)(b) to enter. Beginning at 7:20, § 87(2)(b) refuses to enter the vehicle, stating, "This shit is dumb," repeatedly. PO Howe and one other officer off screen instruct § 87(2)(b) "Have a seat," over twenty times. At 8:17, PO Howe begins to guide § 87(2)(b) into the rear seat of the RMP. § 87(2)(b) is pushing his body back against the RMP, refusing to enter. At 8:37, officers successfully get § 87(2)(b)'s body into the car and PO Howe closes the door. At no point is any officer captured stating, "Get in the fucking vehicle."

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one complaint and was named a victim in one allegation (BR 23)
 - § 87(2)(b)
- § 87(2)(b) has been a party to one complaint in which he was not named as victim (BR 24).
 - § 87(2)(b)
- § 87(2)(b) has been party to five complaints and has been named a victim in 30 allegations (BR

25).

- § 87(2)(b) [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- PO Ramos has been a member of service for four years and has been named a subject in two complaints and four allegations. § 87(2)(g) [REDACTED]
- PO Herrera has been a member of service for three years and has been a subject in one complaint and one allegation. To date this investigation is still open.
- PO Wright has been a member of service for seven years and has been a subject in one complaint and one allegation, which was not substantiated. § 87(2)(g) [REDACTED]
- PO Elwan has been a member of service for three years and has been a subject in five complaints and 25 allegations, of which one was substantiated.
 - 202106165 involved a substantiated allegation of failure to provide an RTKA card. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A. § 87(2)(g) [REDACTED]
- PO Melo has been a member of service for five years and has been a subject in seven complaints and 26 allegations, of which one was substantiated.
 - 202103607 involved a substantiated allegation of discourtesy (word). The Board recommended Command Discipline A and the NYPD imposed no penalty. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of June 27th, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 27).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 14

Investigator:	<u>C.V.</u>	<u>Inv. Carlo Vescovi</u>	<u>09/28/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Cassandra Fenkel</u>	<u>IM Cassandra Fenkel</u>	<u>09/28/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date